

Amendment No. 1 to HB1711

Crawford
Signature of Sponsor

AMEND Senate Bill No. 2108

House Bill No. 1711*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 1, is amended by adding the following as a new part:

4-1-601. Short title.

This part is known and may be cited as the "Unlawful-Immigration Cost Reporting Act."

4-1-602. Purpose - Construction.

(a) The purpose of this part is to create a central reporting system where local governments, state departments and agencies, and other entities serving populations that may include persons not lawfully present in the United States are required to report data concerning the total number of persons in this state who may not be lawfully present in the United States and the associated costs to the state associated with serving such persons.

(b) A local government, state department or agency, or other entity providing a report pursuant to this part shall not include any identifying information regarding an individual, including the name of the person, in a report required by this part.

4-1-603. Part definitions.

As used in this part:

(1) "Collecting entities" means the department of finance and administration and the centralized immigration enforcement division within the department of safety; and

(2) "Hospital" has the same meaning as defined in § 68-11-201.

4-1-604. Creating of reporting process.

The commissioner of finance and administration, in consultation with the centralized immigration enforcement division within the department of safety, shall develop a process in which applicable entities covered by this part must compile and report data regarding the total number of persons in this state who are not lawfully present in the United States and the total costs to the state associated with serving such persons. The reports required by this part must be based upon information gathered by the applicable entities regarding persons who may not be lawfully present in the United States.

4-1-605. Education costs.

(a)

(1) Each LEA and public charter school shall submit the report required pursuant to title 49, chapter 6, part 30 that identifies, for the immediately preceding school year, the number of students enrolled in the LEA or public charter school who produced or failed to produce documentation to establish the student's lawful presence in the United States, to the collecting entities on or before January 31, 2027, with data such LEA and public charter school have collected for the 2026-2027 school year, and by each January 31 thereafter for the immediately preceding school year.

(2) The collecting entities shall work with the department of education to determine the cost per student in each LEA and public charter school.

(b)

(1) The board of trustees of the University of Tennessee system, the Tennessee board of regents, and each board of trustees for a state university shall provide to the Tennessee higher education commission, which shall report on or before January 31, 2027, with data such entities have collected for the

2026-2027 academic year, and by each January 31 thereafter for the immediately preceding academic year to the collecting entities, the number of students enrolled in an institution governed by the respective governing board who received some form of state or federal subsidy or assistance for the payment of the student's tuition or other associated educational costs for the immediately preceding academic year and who were unable to produce documentation to establish that the student:

- (A) Is a citizen of the United States;
- (B) Is in the process of obtaining United States citizenship;
- (C) Holds a valid legal immigration or visa status;
- (D) Is a qualified alien; or
- (E) Is subject to pending immigration proceedings in which a final order of removal has not been issued.

(2) The collecting entities shall work with the board of trustees of the University of Tennessee system, the Tennessee board of regents, and each board of trustees for a state university to determine the cost per student who received some form of state or federal subsidy or assistance, as described in subdivision (b)(1), at each institution governed by the respective governing board.

(c)

(1) The governing board for each private institution of higher education operating in this state shall provide to the Tennessee higher education commission, which shall report on or before January 31, 2027, with data such private institution has collected for the 2026-2027 academic year, and by each January 31 thereafter for the immediately preceding academic year to the collecting entities, the number of students enrolled in the private institution of higher education who received some form of state or federal subsidy or

assistance for the payment of the student's tuition or other associated educational costs for the immediately preceding academic year and who were unable to produce documentation to establish that the student:

- (A) Is a citizen of the United States;
- (B) Is in the process of obtaining United States citizenship;
- (C) Holds a valid legal immigration or visa status;
- (D) Is a qualified alien; or
- (E) Is subject to pending immigration proceedings in which a final order of removal has not been issued.

(2) The collecting entities shall work with each private institution of higher education operating in this state to determine the cost per student who received some form of state or federal subsidy or assistance, as described in subdivision (c)(1), in each private institution of higher education.

4-1-606. Healthcare costs via hospitals.

(a) On or before January 31, 2027, and each January 31 thereafter, the department of health shall report to the collecting entities the number of undocumented patients served during the previous calendar year who received care within this state's healthcare system.

(b) The report submitted by the department of health shall aggregate data from all healthcare providers in this state.

4-1-607. Law enforcement costs.

(a)

(1) The district attorneys general conference shall collect and analyze data from law enforcement agencies on the number of persons charged and the number of persons convicted of a criminal offense in this state during the previous calendar year who were unlawfully present in the United States. To prepare the report, the conference may consult with the Tennessee bureau of

investigation, the department of safety, the department of correction, and other law enforcement agencies, and those agencies may provide information to the extent authorized under state and federal law.

(2) On or before January 31, 2027, and each January 31 thereafter, the conference shall submit a report to the collecting entities, governor, speaker of the house of representatives, and the speaker of the senate, and the report must provide:

(A) The number of persons in aggregate by judicial district; and

(B) The number of persons disaggregated from each reporting law enforcement agency such that the data can be specifically traced to each individual law enforcement agency required to report.

(3) The Tennessee district attorneys general conference shall publish the report on one (1) or more publicly available websites, which must include a publicly available website of the Tennessee district attorneys general conference.

(b) The department of correction shall report to the collecting entities on or before January 31, 2027, and each January 31 thereafter, the cost incurred by this state to hold persons unlawfully present in the United States convicted of a criminal offense in the previous year, in comparison with the total cost incurred by this state to hold all persons convicted of a criminal offense during the same period.

(c)

(1) When a person is arrested, booked, or confined for any period in the jail of a county, including a county with a metropolitan form of government, or a municipality, the arresting law enforcement agency and the keeper of a jail shall collaborate to verify the citizenship status of the person and the sheriff shall report the status of persons who are unlawfully present within the United States or whose status cannot be determined to the district attorneys general conference.

(2) The requirements of subdivision (c)(1) are in addition to the requirements in § 40-7-123.

(d) The collecting entities shall work with the department of correction and the Tennessee Sheriff's Association to determine the cost to hold a person as described in subsections (b) and (c).

(e) For purposes of this section, an individual may be considered to be unlawfully present in the United States if:

(1) The individual cannot provide:

(A) A social security card or number that can be verified with the social security administration in accordance with federal law;

(B) A REAL ID-compliant license or a valid Tennessee driver license or photo identification license issued by the department of safety;

(C) A permanent resident card, also known as a green card, issued by the United States citizenship and immigration services;

(D) An F-1 or M-1 student visa, issued by the United States department of state;

(E) A J-1 visa, issued by the United States department of state;

(F) An official birth certificate issued by a state, jurisdiction, or territory of the United States or a United States government-issued certified birth certificate;

(G) A valid, unexpired United States passport;

(H) A certificate of citizenship (form N560 or N561);

(I) A certificate of naturalization (form N550, N570, or N578);

(J) A B-2 visa, issued by the United States department of state; or

(K) A valid, unexpired e-passport issued by a foreign country and an Electronic System for Travel Authorization approval issued by the United States department of state through the Visa Waiver Program; or

(2) The individual has not been granted parole under 8 U.S.C. § 1182(d)(5), temporary protected status, deferred action, deferred enforced departure, or similar exercise of administrative grace or prosecutorial discretion.

(f) If an individual cannot produce the documentation listed in subdivision (e)(1), then a law enforcement officer or jailer may presume the individual is lawfully present in the United States based on the officer's personal knowledge of the individual.

4-1-608. Social service costs.

(a) On or before January 31, 2027, and each January 31 thereafter, a department, agency, or other entity in the executive branch of state government that administers a program that provides a social service to a person who is unlawfully present in the United States shall report to the collecting entities:

(1) The number of individuals who are being served who are unlawfully present in the United States; and

(2) The cost to serve each individual who is unlawfully present in the United States.

(b)

(1) Notwithstanding a law to the contrary, a non-governmental agency or entity allocated a direct appropriation from this state on or after January 31, 2027, that received a direct appropriation for the prior fiscal year, shall not be disbursed the appropriation until the non-governmental agency or entity has filed with the disbursing state department or agency a report indicating the percentage of the appropriation from the prior year that was used to provide social services or direct support to individuals unlawfully present in the United States.

(2)

(A) Notwithstanding a law to the contrary, a direct appropriation to a non-governmental agency or entity must not be disbursed until the recipient has filed with the head of the disbursing department or agency a

plan specifying the proposed use of the funds and the benefits anticipated to be derived therefrom, which includes any funds and benefits proposed to be provided to individuals unlawfully present in the United States, and has agreed to file an interim status report to be delivered by July 1 of the next calendar year regarding the use of the funds.

(B) As a prerequisite to the receipt of the direct appropriation, the recipient must agree to provide to the agency head, within ninety (90) days of the close of the fiscal year within which the direct appropriation was received, an accounting of the actual expenditure of the funds and benefits derived, including actual expenditures to individuals unlawfully present in the United States. Additionally, a recipient must provide a notarized statement that the report is true and correct in all material respects; provided, however, that the head of the disbursing department or agency may require, in lieu of the accounting, an audited financial statement of the non-governmental agency or entity. A copy of the accounting or audit, as the case may be, must be filed with the office of the comptroller of the treasury.

(c)

(1) Notwithstanding a law to the contrary, a non-governmental subrecipient of a federal grant administered or disbursed by the state on or after July 1, 2026, shall file with the administering or disbursing state department or agency a report by October 1, 2027, and each October 1 thereafter, indicating the percentage of the grant funds from the prior year that was used to provide social services or direct support to individuals unlawfully present in the United States.

(2)

(A) Notwithstanding a law to the contrary, a grant to a non-governmental subrecipient of a federal grant administered or disbursed by the state must not be disbursed until the subrecipient has filed with the head of the administering or disbursing department or agency a plan specifying the proposed use of the funds and the benefits anticipated to be derived therefrom, which includes any funds and benefits proposed to be provided to individuals unlawfully present in the United States, and has agreed to file an interim status report to be delivered by July 1 of the next calendar year regarding the use of the funds.

(B) As a prerequisite to the receipt of the grant, the non-governmental subrecipient must agree to provide to the agency head, within ninety (90) days of the close of the fiscal year within which the grant was received, an accounting of the actual expenditure of the funds and benefits derived, including actual expenditures to individuals unlawfully present in the United States. Additionally, the subrecipient must provide a notarized statement that the report is true and correct in all material respects; provided, however, that the head of the administering or disbursing department or agency may require, in lieu of the accounting, an audited financial statement of the subrecipient. A copy of the accounting or audit, as the case may be, must be filed with the office of the comptroller of the treasury.

(d) As used in this section, "unlawfully present in the United States":

(A) Means a person who is not in lawful immigration status, as defined in 8 CFR 245.1(d); and

(B) Includes:

(i) A person who entered the United States without inspection and admission or parole; and

(ii) A person whose lawful immigration status expired or was rescinded, revoked, or otherwise terminated.

4-1-609. State or local public benefits costs.

On or before January 31, 2027, and each January 31 thereafter, each state governmental entity, local governmental entity, and local health department, and subrecipients of federal grants administered through any of those entities, shall submit to the collecting entities a report on the following:

(1) The number of individuals who applied for a federal, state, or local public benefit, as defined in § 4-58-102, and were determined upon receipt of a final verification not to be a citizen of the United States, a qualified alien, as defined in § 4-58-102, or a person who holds a valid legal immigration or visa status;

(2) The number of individuals for whom a final verification was received indicating that the individual is not a citizen of the United States, a qualified alien, as defined in § 4-58-102, or person who holds a valid legal immigration or visa status, and for whom the entity or department terminates a recurring federal, state, or local public benefit, as defined in § 4-58-102; and

(3) The cost of providing the federal, state, or local public benefit to such persons.

4-1-610. Collected entities report.

On or before July 1, 2027, and each July 1 thereafter, the collecting entities shall submit to the governor, speaker of the house of representatives, and speaker of the senate each report the collecting entities received regarding persons not lawfully present and the costs determined by the collecting entities pursuant to this part.

SECTION 2. Tennessee Code Annotated, Section 4-1-425, is amended by deleting the section.

SECTION 3. Tennessee Code Annotated, Section 4-3-2014(b), is amended by adding the following as a new subdivision:

(9) Administering title 4, chapter 1, part 6 in collaboration with the department of finance and administration;

SECTION 4. Tennessee Code Annotated, Section 40-7-125, is amended by deleting the section.

SECTION 5. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 6.

(a) Section 4-1-605(a) in Section 1 of this act takes effect, the public welfare requiring it, on the effective date of HB 793 / SB 836 of the 114th general assembly, if such bill becomes a law. If HB 793 / SB 836 of the 114th general assembly does not become a law, then Section 4-1-605(a) does not take effect.

(b) All other provisions of this act take effect upon becoming a law, the public welfare requiring it.